

Court No. - 21

Case :- WRIT - C No. - 7010 of 2012

Petitioner :- Marsood Khan @ Maqsood Khan

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Rishikesh Tripathi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

Sri Rajesh Tripathi, learned counsel appears on behalf of respondents no.1, 2 and 5. Issue notice to respondents no.3 & 4. Petitioner will take step in office within a week.

Learned counsel for the petitioner submits that respondent no.3 is not authorized under the provision of U.P. Electricity Supply Code, 2005 to make assessment of electricity theft. He refers to clause 7.3 (I) of the Code aforesaid. Prima facie the submissions made by the petitioner makes out a case for grant of interim relief.

Let a counter affidavit be filed within four weeks and list thereafter.

In the meantime no further action shall be taken in pursuance of assessment dated 18.11.2011 (Annexure 2 to the writ petition).

Order Date :- 8.2.2012

P.P.

Court No. - 33

Case :- WRIT - C No. - 7010 of 2012

Petitioner :- Marsood Khan @ Maqsood Khan

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Rishikesh Tripathi

Respondent Counsel :- Rajesh Tripathi, S.C.

Hon'ble Uma Nath Singh, J.

Hon'ble S.C. Chaurasia, J.

Order (Oral)

Learned counsel for parties pray for and are granted four weeks time to complete the pleadings. List the matter on 25.04.2012.

Interim order, if any, to continue till then.

Order Date :- 16.3.2012

A. Katiyar

Court No. - 21

Case :- WRIT - C No. - 7010 of 2012

Petitioner :- Marsood Khan @ Maqsood Khan

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Rishikesh Tripathi

Respondent Counsel :- Rajesh Tripathi, S.C.

Hon'ble R.K. Agrawal, J.

Hon'ble Mushaffey Ahmad, J.

As prayed, counter affidavit may be filed within three weeks and no more. List thereafter alongwith Writ Petition nos. 11866 of 2012, 12005 of 2012, 16938 of 2012, 655 of 2012, 17117 of 2012, 16553 of 2012, 18275 of 2012, 7010 of 2012, 38711 of 2011, 7262 of 2011 and 1778 of 2011 giving full particulars of the parties and their counsel.

Interim order is extended till the next date of listing. List along

Order Date :- 25.4.2012

RU

Court No. - 21

Case :- WRIT - C No. - 7010 of 2012

Petitioner :- Marsood Khan @ Maqsood Khan

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Rishikesh Tripathi

Respondent Counsel :- Rajesh Tripathi, S.C.

Hon'ble R.K. Agrawal, J.

Hon'ble Mushaffey Ahmad, J.

As jointly prayed, list on 16.7.2012. In the meantime, affidavits be exchanged.

Order Date :- 11.5.2012

RU

Court No. - 21

Case :- WRIT - C No. - 7010 of 2012

Petitioner :- Marsood Khan @ Maqsood Khan

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Rishikesh Tripathi

Respondent Counsel :- Rajesh Tripathi,S.C.

Hon'ble Vineet Saran,J.

Hon'ble Mushaffey Ahmad,J.

The case is passed over on the illness slip sent by Sri Rishikesh Tripathi, learned counsel for the petitioner.

Learned counsel for the respondents states that the matter is urgent.

List this matter on 22nd August, 2012.

Order Date :- 25.7.2012

AbHishek

(Mushaffey Ahmad, J.) (Vineet Saran, J.)

Case :- WRIT - C No. - 7010 of 2012

Petitioner :- Marsood Khan @ Maqsood Khan

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Rishikesh Tripathi

Respondent Counsel :- Rajesh Tripathi, S.C.

Hon'ble Yatindra Singh, J.

Hon'ble Mahendra Dayal, J.

1. In view of the fact that we have modified the interim order in the leading writ petition, the interim order passed in this writ petition is also confirmed subject to the modification that the further proceeding in pursuance of the provisional assessment notice shall remain stayed provided the petitioner files a bank guarantee of half of the amount, mentioned in the provisional bill before the concerned Executive Engineer of the Dakshinanchal Vidyut Vitran Nigam Ltd. within a period of three weeks. In case the bank guarantee is not filed within the period of three weeks then the interim order shall stand automatically vacated.

2. In case, the writ petition is dismissed, bank guarantee will be transferred to M/s. Torrent Power Limited. The bank guarantee may be realised only after the provisional bill is finalised and in case the final amount due is found to be more than the bank guarantee submitted.

3. It is also clarified that the petitioner shall continue to pay all future charges as and when fall due.

Order Date :- 26.9.2012

vs

Court No. - 36

Case :- WRIT - C No. - 7010 of 2012

Petitioner :- Marsood Khan @ Maqsood Khan

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Rishikesh Tripathi

Counsel for Respondent :- Rajesh Tripathi, S.C.

Hon'ble Vineet Saran, J.

Hon'ble B. Amit Sthalekar, J.

Learned counsel for the petitioner Shri Rishikesh Tripathi stated that he has filed rejoinder affidavit in the office on 18.7.2012 and an application seeking extension of time was filed on 22.11.2012. Both are not on the record.

Office is directed to trace out the same and place them on record.

List in the next cause list.

Order Date :- 26.7.2013

o.k.

(B. Amit Sthalekar, J.) (Vineet Saran, J.)

Court No. - 29

Case :- WRIT - C No. - 7010 of 2012

Petitioner :- Marsood Khan @ Maqsood Khan

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Rishikesh Tripathi

Counsel for Respondent :- Rajesh Tripathi, S.C.

Hon'ble Sheo Kumar Singh, J.

Hon'ble Brijesh Kumar Srivastava-II, J.

Put up tomorrow.

Order Date :- 10.10.2013

SKS

Court No. - 29

Case :- WRIT - C No. - 7010 of 2012

Petitioner :- Marsood Khan @ Maqsood Khan

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Rishikesh Tripathi

Counsel for Respondent :- Rajesh Tripathi, S.C.

Hon'ble Sheo Kumar Singh, J.

Hon'ble Brijesh Kumar Srivastava-II, J.

Let the matter be listed in the next cause list.

Order Date :- 11.10.2013

Puspendra

Court No. - 29

Civil Misc. Time Extension Application No. 346001 of 2012

IN

Case :- WRIT - C No. - 7010 of 2012

Petitioner :- Marsood Khan @ Maqsood Khan

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Rishikesh Tripathi

Counsel for Respondent :- Rajesh Tripathi, S.C.

Hon'ble Sheo Kumar Singh, J.

Hon'ble Pradeep Kumar Singh Baghel, J.

Heard Sri Rishikesh Tripathi, learned Counsel for the petitioner and Sri Kamal Kesarwani, learned Advocate holding brief of Sri Baleshwar Chaturvedi, learned Counsel for the respondent.

This is an application on behalf of the petitioner, for grant of some more time to furnish Bank Guarantee in terms of the earlier order passed by this Court on 26.09.2012.

Submission is that there was slight delay in arranging funds and, therefore, when the funds were arranged, the Bank refused to accept it as the time stood expired.

Sri Tripathi submits that now the fund is already arranged, therefore, a brief time may be given to the petitioner to furnish Bank Guarantee in terms of the order of this Court. Learned Counsel for the petitioner further pointed out that the electricity connection has been disconnected on account of non-furnishing of Bank Guarantee.

This application for extension of time has already been filed in November, 2012 but it could not be taken up.

On the facts, this Court permits the petitioner to furnish Bank Guarantee in terms of the order of this Court, on or before 25.11.2013. It is further made clear that as soon as the Bank Guarantee is furnished, the electricity connection, if has been disconnected only on that ground, then on completion of required formalities, the respondents will forthwith restore the same.

Order Date :- 14.11.2013

[D.S.]

Court No. - 10

Case :- WRIT - C No. - 7010 of 2012

Petitioner :- Marsood Khan @ Maqsood Khan

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Rishikesh Tripathi

Counsel for Respondent :- Rajesh Tripathi, B. Chaturvedi, S.C.

Hon'ble Arun Tandon, J.

Hon'ble Naheed Ara Moonis, J.

Sri Rishikesh Tripathi, learned counsel for the petitioner with reference to Civil Misc. Application No. 324385 of 2016 which is supported by affidavit submits that the present writ petition may be dismissed as not pressed.

The writ petition is accordingly dismissed as not pressed. Interim order, if any stands discharged.

(Naheed Ara Moonis, J.) (Arun Tandon, J.)

Order Date :- 3.11.2016

Naim